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Rameshwar Prasad
v
Union of India

The next case considered in this book offers a heady combination of high political drama and significant questions of constitutional law. The Rameshwar Prasad case, and the circumstances surrounding it, involves no less than two state elections, midnight phone calls to Moscow, two Supreme Court decisions (one of them under five pages, the other close to five hundred), resignations and near-resignations, and hideaways in Jamshedpur.

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Lalu Prasad Yadav had administered Bihar for nearly fifteen years by the time the state assembly elections came around in February 2005. He did so directly as chief minister of the state for roughly the first half of that period. For the second half, he governed the state by proxy through his wife, Rabri Devi, who assumed the position following his resignation prompted by corruption charges. Anti-incumbency was running high, and internal rebellions within Yadav's Rashtriya Janata Dal (RJD) were expected to impact its electoral fortunes.

Aside from the incumbents, at least four other political parties had credible aspirations of securing a substantial number of seats in the assembly. They were the Bharatiya Janata Party (BJP) and the Janata Dal United (JDU) – both part of the National Democratic Alliance (NDA), the